

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

RFA No. 69733 of 2019

Sui Northern Gas Pipelines Limited through its General Manager
vs.
Abdul Ghaffar

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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11.03.2026	Rana Zia ul Islam, Advocate for appellant. Respondent in person.
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Through this appeal, the appellant has called in question impugned order dated 26.09.2019 passed by Additional District Judge/Judge Utility Court, Gujranwala, whereby suit for recovery of Rs.1,87,407/- alongwith future markup and late payment surcharge, filed by the appellant against the respondent for consumption of sui gas, has been dismissed.

2. The learned counsel for the appellant states that sole reason for dismissal of the suit mentioned by the trial court is that plaint in an earlier suit filed by the appellant, claiming the same relief, was rejected under the provisions of Order VII Rule 11 CPC, which reasoning was not justified because in terms of provisions of Order VII Rule 13 CPC, on rejection of plaint in a previous suit, subsequent suit seeking same relief on same cause of action is maintainable.

3. On the other hand, the respondent, who has appeared in person, has defended the impugned order by stating that the appellant had concealed filing of his previous suit, therefore, the subsequent suit based on same cause of action seeking same relief was rightly dismissed.

4. The perusal of the record shows that vide order dated 18.06.2019, the plaint of previous recovery suit

filed by the appellant was rejected under the provisions of Order VII, Rule 11 CPC. The operative portion of said order is reproduced below for clarity:

‘The instant suit was filed on 28.01.2019. Valuation of the suit for the purpose of court fee was fixed as 1,87,407/- on which court fee stamp of Rs. 14,056/- were payable. Although in para No.13 of the plaint it has been averred that the court fee stamp of Rs.14,056/- has been affixed but the same is factually incorrect and a mis-statement on the part of the plaintiff in order to mis-lead the court. Despite numerous opportunities, the plaintiff has failed to submit the requisite court fee. In these circumstances, the plaint is hereby rejected under Order VII Rule 11 CPC with costs.’

5. The appellant thereafter filed the instant suit seeking the same relief and for its maintainability, relies upon the provisions of Order VII Rule 13 CPC as amended by Lahore High Court Notification No. 237/Legis/XI-Y-26, Gazette of Punjab Dated 22.08.2018, provides as under:-

“13. Where rejection of plaint does not preclude presentation of fresh plaint. *The rejection of the plaint, on any of the grounds mentioned in clause (a), clause (b) or clause (c) of rule 11, shall not, of its own force, preclude the plaintiff from presenting a fresh plaint in respect of the same cause of action.”*

6. The perusal of the Rule 13 (supra) makes it clear that there is no cavil to the proposition that where a plaint of a suit is rejected under Order VII CPC on the basis of grounds mentioned in Clause (a), (b) and (c) of Rule 11 thereof, the plaintiff is not precluded from presenting a fresh plaint on the same cause of action, however, the said provision does not mention that the said suit would maintainable or proceed-able under all circumstances, for example, a situation may arise that the relief claimed in the subsequent suit may have become time barred due to efflux of time or the relief claimed therein may become barred by principle of *res-judicata* due to decision of

some other suit, etc. or relief is no more claimable due to change of law in the meanwhile or the cause of action may have abated due to change of circumstances, etc. This is the reason that in Rule 13 (supra) the phrase “of its own force” has been used which means that there may be other reasons on the basis of which, despite filing of fresh plaint on same cause of action, suit may not be proceed-able.

7. The perusal of the impugned order shows that in the present case, not only the suit filed by the appellant was dismissed due to the ground that earlier suit had been dismissed by rejection of its plaint for non-payment of court fee despite various opportunities but also the same had been dismissed for the reason of concealment of facts as the aforementioned dismissal of earlier suit filed by the appellant was not disclosed. The operative part of the impugned order is reproduced below:-

“The defendant has produced attested copies of suit titled “The SNGPL vs. Abdul Ghaffar” and order dated 18.06.2019 whereby by Worthy Court of Mr. Tariq Saleem Chohan has rejected the plaint u/o 7 rule 11 CPC with costs. The order dated 18.06.2019 regarding rejection of plaint is an appealable order. No copy of appeal is produced showing that the appellate court has granted permission to the plaintiff to file this fresh suit. The plaintiff in the instant suit has also not disclosed that earlier his suit on the same contents with the same prayer was dismissed vide order dated 18.06.2019 by the above said Worthy Court. The order dated 18.06.2019 also exhibits that it has been observed therein that mis statement on the part of the plaintiff in order to mis lead the court was noticed. The plaintiff company has again tried to cheat the court which act of the plaintiff company is not appreciable. It is more objectionable when the earlier suit was filed and this suit was filed by one and same counsel Mr. Abdul Baseer Khan Advocate. The material facts are concealed from the court. In the light of above discussion, this suit is not maintainable. It is accordingly dismissed.”

8. The question arises that whether the subsequent suit can be filed without disclosing the fact of dismissal of the earlier suit and if filed, whether the same would be maintainable, despite concealment of fact of its dismissal by having resort to provision of Order VII Rule 13 CPC mentioned above.

9. In somewhat similar situation when the filing of earlier suit was not disclosed by the plaintiff, the Islamabad High Court in case titled Sajjad Ahmed versus Chairman, Capital Development Authority and others (2016 CLC 896), held that the plaintiff by concealing earlier litigation, whereby plaint of earlier suit had been rejected under provision of Order VII Rule 11 CPC, had acted contumaciously and inequitably and litigant who had failed to make complete disclosure of an earlier litigation in the subsequent suit could be held to have abused the process of law and revision petition could not be exercised in favour of a party who had concealed or suppressed a material fact from the court. The operative portion of the said order is reproduced below for clarity:

‘19. *The subsequent suit bears a certificate, which reads: "It is certified that no matter is pending adjudication between the same parties before any court of law". This is a crafty and a nefarious design by the petitioner to have the subsequent suit entertained without making disclosure of the earlier litigation, which had been decided in favour of CDA. The purpose behind the requirement of a certificate from a plaintiff or his counsel requiring disclosure of any pending or previous litigation between the parties is to prevent the defendant from being vexed twice. Even though, there had not been a full-fledged trial in the earlier litigation and the learned civil court had rejected the petitioner's plaint under Order VII, Rule 11, C.P.C., it was nonetheless obligatory upon the petitioner to have disclosed this fact in the certificate as well as the pleadings in the subsequent suit.*

20. *Concealment of a material fact in the pleadings is akin to an abuse of the process of the Court. It is an elementary principle of law that a party, who approaches the court for discretionary*

relief, should candidly and forthrightly narrate all material facts in the plaint and/or the application for the grant of a temporary injunction. A litigant who had failed to make complete disclosure of an earlier litigation in the subsequent suit between the same parties, can be held to have abused the process of law and such an action was considered to be a deliberate attempt to hamper and obstruct due course of judicial proceedings in administration of justice. The petitioner, in the subsequent suit, ought to have disclosed the factum about the earlier litigation between the parties and the result thereof.'

10. In Executive Engineer Irrigation Rohri Division Moro and 4 others versus Gul Muhammad {2024 CLC 1460 (Sindh)}, the matter of concealment of earlier suit resulting in dismissal of subsequent suit was discussed as under:-

'18. Upon careful examination of the pleadings in the present F.C Suit No.171 of 2008, it becomes evident that the plaintiff has deliberately obscured the filing of a second F.C Suit No.118/2008 in the aforementioned suit. This deliberate concealment of facts from the Court, specifically the existence of F.C Suit No. 118/2008 concerning the same property and involving the same parties, which was already under adjudication before the same trial Court, raises serious questions about the plaintiff's intentions and the validity of the second suit. The second suit appears to be in direct violation of Order VI Rule 7 of the Code of Civil Procedure (C.P.C), which stipulates that no pleading shall, except by way of amendment, introduce any new grounds of claim or contain any allegations of fact that are inconsistent with the previous pleadings of the party making the same. Therefore, the present suit is deemed to be incompetent.

19. The concealment of a material fact from the Court is a serious matter that not only amounts to thwarting but also hoodwinking the process of law. Such actions are unacceptable under any circumstances. The Court operates on the principle of transparency and full disclosure, and any deviation from this principle can have severe consequences. In the context of the present case, it is clear that the plaintiff had a duty to disclose the pendency of the first suit while filing the present suit. Failure to do so constitutes a concealment of material fact. This concealment has led to the

entire proceedings conducted by the trial Court being tainted with material irregularities and illegalities, rendering them unsustainable.

20. *It is crucial to note that while there are concurrent findings of both the lower courts, the judgments and decrees passed by them are not beyond the purview of this Court's interference. This Court can invoke its revisional jurisdiction under Section 115, C.P.C if it is found that the judgments and decrees result from concealment of fact, misreading, or non-reading of the record or if the suit was not filed with clean hands. In the present case, if the judgments and decrees result from concealment of fact, misreading, or non-reading of the record, or if the suit was not filed with clean hands, it would constitute a material irregularity. Such irregularities are precisely the kind of situations that Section 115 of the C.P.C is designed to rectify. Therefore, despite the concurrent findings of the lower courts, this Court can interfere with their judgments and decrees under its revisional jurisdiction.*

21. *For the foregoing reasons, the instant Revision Application is allowed. Consequently, the judgments and decrees of both courts below are set aside, and the suit filed by the respondent/plaintiff stands dismissed.'*

11. This Court in Town Committee, Depalpur through Tehsil Nazim Depalpur, District Okara versus Mst. Amtul Hameed and 2 others (2012 YLR 269) while dismissing the subsequent suit held that the plaintiff by filing the present suit were under obligation to put the whole story of earlier suit for permanent injunction as the said suit was rejected under Order VII Rule 11 CPC wherein the same facts were narrated in the plaint.

12. The Sindh High Court in Asad Zaheer through Attorney versus Muyhammad Ismail and another (2019 CLC 804) wherein a previous suit had been withdrawn but the same was not mentioned in the subsequent suit, dismissed the subsequent suit by holding that the plaintiff should have mentioned withdrawal of previous suit because party to the proceedings in order to show his/her *bona fide*, has to disclose all previous and *sub judice* litigation/cases and non-disclosure of such vital

information is fatal. It was further held that nature of pleadings and the relief claimed in the earlier and present litigation are substantially the same, therefore, merely by claiming an additional relief of damages will not improve the case of plaintiff by bringing it into the ambit of Order VII, Rule 13 of CPC which provides that rejection of plaint is not a bar to present a fresh suit on same cause of action.

13. The perusal of the principles laid down in the aforementioned judgments makes it clear that for the subsequent suit to be maintainable and proceedable, the appellant was required to disclose that earlier suit filed by him had been dismissed, which was a legal requirement to show its *bona fide* and for preventing the respondent to vexed twice on the basis of same cause of action. Neither dismissal of earlier suit had been mentioned in the plaint nor any note has been given on the plaint that earlier suit was dismissed by rejection of plaint under Order VII Rule 11 CPC due to non-payment of court fee. Even cause of action mentioned in the plaint shows that it is claimed to have accrued two days prior to filing of the subsequent suit by concealing the fact that earlier suit stood dismissed on 18.06.2019, much prior to the said date. Although it is claimed that the non-disclosure was not intentional rather based on erroneous assumption that the provisions of Order VII Rule 13 CPC provided that on rejection of plaint in earlier suit plaintiff was not precluded for filing subsequent plaint on same cause of action, yet the said provision does not absolve the appellant from disclosing previous litigation between the parties and non-disclosure of the same in the given circumstances of the case is fatal to the stance taken by the appellant in the subsequent suit, therefore, in the given circumstances, the provisions of Order VII Rule 13 CPC would be of no help to the appellant despite the fact

that appellant was not precluded to file subsequent plaint/suit on rejection of previous plaint.

14. For what has been discussed above, there is no misreading or non-reading of record, illegality or jurisdictional defect in the impugned order for this Court to warrant interference at this stage in the impugned order, whereby suit of the appellant has been dismissed. This appeal is accordingly ***dismissed***.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed *

APPROVED FOR REPORTING: